

House File 309

S-3082

1 Amend House File 309, as passed by the House, as follows:

2 1. Page 1, before line 1 by inserting:

3 <DIVISION I

4 REVIEW OF CERTAIN DEFICIENT PRACTICES BY NURSING FACILITIES>

5 2. Page 1, after line 14 by inserting:

6 <DIVISION ____

7 AUTHORIZED ELECTRONIC MONITORING IN NURSING FACILITIES

8 Sec. _____. NEW SECTION. 135C.49 Definitions.

9 As used in this subchapter, unless the context otherwise
10 requires:

11 1. "*Electronic monitoring*" means the placement and use of an
12 electronic monitoring device by a resident in the resident's
13 room in accordance with this subchapter.

14 2. "*Electronic monitoring device*" means a camera or other
15 device that captures, records, or broadcasts audio, video,
16 or both, that is placed in a resident's room and is used to
17 monitor the resident or activities in the room.

18 3. "*Resident*" means an individual admitted to a nursing
19 facility in a manner prescribed in section 135C.23.

20 4. "*Resident representative*" means one of the following in
21 the order of priority listed, to the extent the person may
22 reasonably be identified and located:

23 a. The attorney in fact designated to make treatment
24 decisions for the resident in accordance with chapter 144B.

25 b. The guardian of the resident if one has been appointed
26 pursuant to chapter 633.

27 c. The resident's spouse.

28 d. An adult child of the resident or, if the resident has
29 more than one adult child, a majority of the adult children who
30 are reasonably available.

31 e. A parent of the resident, or parents if both are
32 reasonably available.

33 f. An adult sibling of the resident.

34 Sec. _____. NEW SECTION. 135C.50 Electronic monitoring.

35 1. A resident or a resident representative may conduct

1 electronic monitoring of the resident's room through the use of
2 an electronic monitoring device placed in the resident's room
3 pursuant to this subchapter.

4 2. Nothing in this section precludes the use of electronic
5 monitoring otherwise allowed by law.

6 Sec. _____. NEW SECTION. 135C.51 Consent to electronic
7 monitoring.

8 1. Except as otherwise provided in this subchapter,
9 a resident must consent to electronic monitoring in the
10 resident's room in writing on a notification and consent
11 form prescribed by the department. If the resident has
12 not affirmatively objected to electronic monitoring and the
13 resident's medical professional determines that the resident
14 lacks the ability to understand and appreciate the nature
15 and consequences of electronic monitoring, the resident
16 representative may consent on behalf of the resident. For
17 purposes of this subsection, a resident affirmatively objects
18 when the resident orally, visually, or through the use of
19 auxiliary aids or services declines electronic monitoring. The
20 resident's response shall be documented on the notification and
21 consent form.

22 2. Prior to a resident representative consenting on behalf
23 of a resident, the resident shall be asked if the resident
24 wants electronic monitoring to be conducted. The resident
25 representative shall explain all of the following to the
26 resident:

27 a. The type of electronic monitoring device to be used.

28 b. The standard conditions or restrictions that may be
29 placed on the electronic monitoring device's use including as
30 specified in the list of standard conditions or restrictions
31 contained in the notification and consent form completed by the
32 resident as provided in section 135C.54.

33 c. The dissemination and use of any recording as provided
34 under section 135C.58 or 135C.59.

35 d. The resident's ability to decline all recordings.

1 3. A resident, or resident representative when consenting
2 on behalf of the resident, may consent to electronic monitoring
3 with any conditions or restrictions of the resident's or
4 resident representative's choosing, including the list
5 of standard conditions or restrictions contained in the
6 notification and consent form completed by the resident
7 as provided in section 135C.54. A resident, or resident
8 representative when consenting on behalf of the resident, may
9 request that the electronic monitoring device be turned off
10 or the visual or audio recording component of the electronic
11 monitoring device be blocked at any time.

12 4. Prior to implementing electronic monitoring, a resident,
13 or resident representative when acting on behalf of the
14 resident, shall obtain the written consent on the notification
15 and consent form of any other resident who is a roommate
16 residing in the shared room. A roommate's or roommate's
17 resident representative's written consent shall comply with
18 the requirements of this section. Consent by a roommate or
19 a roommate's resident representative under this subsection
20 authorizes the resident's use of any recording obtained under
21 this section as provided under sections 135C.58 and 135C.59.

22 5. Any resident conducting electronic monitoring shall
23 immediately remove or disable an electronic monitoring device
24 prior to a new resident who will be a roommate moving into
25 a shared room, unless the resident conducting electronic
26 monitoring obtains the new roommate's or new roommate's
27 resident representative's written consent as provided under
28 this section prior to the new roommate moving into the shared
29 room. Upon obtaining the new roommate's or new roommate's
30 resident representative's signed notification and consent form
31 and submitting the form to the nursing facility as required
32 under section 135C.53, the resident may resume electronic
33 monitoring.

34 6. The resident or roommate, or the resident representative
35 or roommate's resident representative if the representative is

1 consenting on behalf of the resident or roommate, may withdraw
2 consent at any time and the withdrawal of consent shall be
3 documented on the original consent form as provided under
4 section 135C.53.

5 Sec. _____. NEW SECTION. 135C.52 Refusal of roommate to
6 consent.

7 If a resident of a nursing facility who is residing in a
8 shared room, or the resident representative of such a resident
9 when acting on behalf of the resident, wants to conduct
10 electronic monitoring and another resident living in or moving
11 into the same shared room refuses to consent to the use of an
12 electronic monitoring device, the nursing facility shall make
13 a reasonable attempt to accommodate the resident who wants to
14 conduct electronic monitoring. A nursing facility has met
15 the requirement to make a reasonable attempt to accommodate
16 a resident or resident representative who wants to conduct
17 electronic monitoring when, upon notification that a roommate
18 has not consented to the use of an electronic monitoring device
19 in the resident's room, the nursing facility offers to move one
20 of the residents to another shared room that is available at
21 the time of the request that accommodates the resident. If
22 a resident chooses to reside in a private room in order to
23 accommodate the use of an electronic monitoring device, the
24 resident shall be subject to a private room rate. If a nursing
25 facility is unable to accommodate a resident due to lack of
26 space, the nursing facility shall reevaluate the request
27 periodically until the request is fulfilled.

28 Sec. _____. NEW SECTION. 135C.53 Notice and consent form
29 submitted to nursing facility.

30 1. Electronic monitoring may begin only after the resident
31 or resident representative who intends to place an electronic
32 monitoring device in the resident's room and any roommate or
33 roommate's resident representative completes a notification and
34 consent form and submits the form to the nursing facility.

35 2. Upon receipt of the required, completed notification and

1 consent form, the nursing facility shall place the original
2 form in the resident's file, and a copy of the form in any
3 roommate's file. The nursing facility shall provide a copy to
4 the resident and the resident's roommate, as applicable.

5 3. If a resident or roommate, or the resident representative
6 or roommate's resident representative if the representative
7 is consenting on behalf of the resident or roommate, chooses
8 to alter the conditions under which consent to electronic
9 monitoring is given or chooses to withdraw consent to
10 electronic monitoring, the nursing facility shall make
11 available the original notification and consent form so that
12 the original form may be updated. Upon receipt of the updated
13 original form, the nursing facility shall place the updated
14 original form in the resident's file. The nursing facility
15 shall provide a copy of the updated form to the resident and
16 the resident's roommate, as applicable.

17 4. If a new roommate, or the new roommate's resident
18 representative when consenting on behalf of the new roommate,
19 does not consent to electronic monitoring and submit a
20 completed notification and consent form to the nursing
21 facility, and the resident conducting the electronic monitoring
22 does not remove or disable an existing electronic monitoring
23 device, the nursing facility shall remove the electronic
24 monitoring device.

25 5. If a roommate, or the roommate's resident representative
26 when withdrawing consent on behalf of the roommate, submits
27 an updated notification and consent form withdrawing consent
28 and the resident conducting electronic monitoring does not
29 remove or disable the electronic monitoring device, the nursing
30 facility shall remove the electronic monitoring device.

31 Sec. ____ . NEW SECTION. 135C.54 Notification and consent
32 form requirements.

33 1. The notification and consent form completed by the
34 resident shall include, at a minimum, all of the following
35 information:

1 *a.* The resident's signed consent to electronic monitoring or
2 the signature of the resident representative, if applicable.
3 If a resident representative signs the consent form, the form
4 shall document all of the following:
5 (1) The date the resident was asked if the resident wants
6 electronic monitoring to be conducted.
7 (2) Any person present when the resident was asked.
8 (3) An acknowledgment that the resident did not
9 affirmatively object.
10 (4) The source of authority allowing the resident
11 representative to sign the notification and consent form on the
12 resident's behalf.
13 *b.* The resident's roommate's signed consent or the signature
14 of the roommate's resident representative, if applicable. If a
15 roommate's resident representative signs the consent form, the
16 form shall document all of the following:
17 (1) The date the roommate was asked if the roommate wants
18 electronic monitoring to be conducted.
19 (2) Any person present when the roommate was asked.
20 (3) An acknowledgment that the roommate did not
21 affirmatively object.
22 (4) The source of authority allowing the resident
23 representative to sign the notification and consent form on the
24 roommate's behalf.
25 *c.* The type of electronic monitoring device to be used.
26 *d.* Any installation needs, such as mounting of a device to
27 a wall or ceiling.
28 *e.* The proposed date of installation for scheduling
29 purposes.
30 *f.* A copy of any contract for maintenance of the electronic
31 monitoring device by a commercial entity.
32 *g.* A list of standard conditions or restrictions that the
33 resident or a roommate may elect to place on the use of the
34 electronic monitoring device including but not limited to all
35 of the following:

1 (1) Prohibiting audio recording.

2 (2) Prohibiting video recording.

3 (3) Prohibiting broadcasting of audio or video.

4 (4) Turning off the electronic monitoring device or

5 blocking the visual recording component of the electronic

6 monitoring device for the duration of an exam or procedure by a

7 health care professional.

8 (5) Turning off the electronic monitoring device or

9 blocking the visual recording component of the electronic

10 monitoring device while dressing or bathing is performed.

11 (6) Turning off the electronic monitoring device for

12 the duration of a visit with a spiritual adviser, ombudsman,

13 attorney, financial planner, intimate partner, or other

14 visitor.

15 *h.* Any other condition or restriction elected by the

16 resident or roommate on the use of an electronic monitoring

17 device.

18 *i.* A statement of the circumstances under which a recording

19 may be disseminated under section 135C.58.

20 *j.* A signature box to document if the resident or roommate

21 withdraws consent.

22 2. A nursing facility shall make the notification and

23 consent form available to the residents and inform residents of

24 the option to conduct electronic monitoring of the resident's

25 room.

26 Sec. _____. NEW SECTION. 135C.55 Cost and installation.

27 1. A resident who chooses to conduct electronic monitoring

28 shall do so at the resident's own expense, including payment of

29 any purchase, installation, maintenance, and removal costs.

30 2. If a resident chooses to place an electronic monitoring

31 device that uses internet technology for visual or audio

32 monitoring, the resident may be responsible for contracting

33 with an internet service provider.

34 3. The nursing facility shall make a reasonable attempt

35 to accommodate the resident's installation needs, including

1 allowing access to the nursing facility's public-use internet
2 or wi-fi systems when available for other public uses.

3 4. All electronic monitoring device installations and
4 supporting services shall comply with the requirements of the
5 national fire protection association 101 life safety code.

6 5. A nursing facility shall not charge a resident a fee
7 for the costs of electricity used by the electronic monitoring
8 device.

9 Sec. _____. NEW SECTION. 135C.56 **Notice to visitors.**

10 1. A nursing facility shall post a sign at each nursing
11 facility entrance accessible to visitors that states
12 "Electronic monitoring devices may be present in the rooms of
13 residents to record persons and activities".

14 2. A nursing facility shall post a sign clearly and
15 conspicuously at the entrance to a resident's room where
16 electronic monitoring is being conducted. The notice shall
17 state "This room is electronically monitored".

18 3. The nursing facility is responsible for installing and
19 maintaining the signage required in this section.

20 Sec. _____. NEW SECTION. 135C.57 **Obstruction of electronic
21 monitoring devices.**

22 1. A person shall not knowingly hamper, obstruct, tamper
23 with, or destroy an electronic monitoring device placed in
24 a resident's room without the permission of the resident or
25 resident representative.

26 2. A person shall not knowingly hamper, obstruct, tamper
27 with, or destroy a video or audio recording obtained through
28 the use of an electronic monitoring device in accordance with
29 this subchapter.

30 3. It is not a violation of this section for a person to
31 turn off the electronic monitoring device or block the visual
32 recording component of the electronic monitoring device at the
33 direction of the resident or resident representative, or if
34 consent has been withdrawn.

35 4. A person who violates this section is guilty of a serious

1 misdemeanor.

2 Sec. _____. NEW SECTION. 135C.58 **Dissemination of recordings.**

3 1. A person shall not access any video or audio recording
4 created through electronic monitoring under this subchapter
5 without the written consent of the resident or resident
6 representative.

7 2. Except as otherwise required by law, a recording or copy
8 of a recording created as provided in this subchapter may only
9 be disseminated for the purpose of addressing health, safety,
10 or welfare concerns of a resident.

11 3. A person accessing or disseminating a recording or copy
12 of a recording created as provided in this section in violation
13 of this section is guilty of a serious misdemeanor.

14 Sec. _____. NEW SECTION. 135C.59 **Admissibility of evidence.**

15 Subject to applicable rules of evidence and procedure, any
16 video or audio recording created through electronic monitoring
17 under this subchapter may be admitted into evidence in a civil,
18 criminal, or administrative proceeding if the contents of the
19 recording have not been edited or artificially enhanced and the
20 recording includes the date and time the events occurred.

21 Sec. _____. NEW SECTION. 135C.60 **Liability — penalties.**

22 1. A nursing facility is not civilly or criminally liable
23 for the disclosure of a recording by a resident or a person who
24 consents on behalf of a resident for any purpose not authorized
25 by this subchapter.

26 2. A nursing facility is not civilly or criminally liable
27 for a violation of a resident's right to privacy arising out
28 of any electronic monitoring conducted in accordance and in
29 compliance with this subchapter.

30 3. A nursing facility that knowingly violates this
31 subchapter shall be subject to licensee discipline.

32 Sec. _____. NEW SECTION. 135C.61 **Resident protections.**

33 1. A nursing facility shall not do any of the following:

34 a. Refuse to admit a potential resident or remove a resident
35 because the nursing facility disagrees with the potential

1 resident's or the resident's decisions regarding electronic
2 monitoring, whether the decision is made by a resident or a
3 resident representative acting on behalf of the resident.

4 **b.** Retaliate or discriminate against any resident for
5 consenting or refusing to consent to electronic monitoring.

6 **c.** Prevent the placement or use of an electronic monitoring
7 device by a resident who has provided the nursing facility
8 with the notification and consent form as required under this
9 subchapter.

10 2. Any contractual provision prohibiting, limiting,
11 or otherwise modifying the rights and obligations in this
12 subchapter is contrary to public policy and is void and
13 unenforceable.

14 Sec. _____. NEW SECTION. **135C.62 Report to department.**

15 A nursing facility shall report to the department, in a
16 manner prescribed by the department, the number of electronic
17 monitoring device notification and consent forms received by
18 the nursing facility on an annual basis.

19 Sec. _____. **DIRECTIVE TO DEPARTMENT OF INSPECTIONS, APPEALS,**
20 **AND LICENSING.** The department of inspections, appeals, and
21 licensing shall prescribe by rule pursuant to chapter 17A the
22 notification and consent form described in this Act, and shall
23 make the form available on the department's internet site.

24 Sec. _____. **CODE EDITOR DIRECTIVE.** The Code editor may codify
25 the provisions of this Act as a new subchapter of chapter 135C
26 entitled "Electronic Monitoring".>

27 3. Title page, by striking lines 1 through 3 and inserting
28 <An Act relating to nursing facilities, including the review
29 of certain deficient practices by nursing facilities, and the
30 requirements for authorized electronic monitoring in nursing
31 facilities, and providing penalties.>

32 4. By renumbering as necessary.

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